

		dismissed. Clerk shall give notice.
205	Connectcomp, Inc. vs. Armstrong Supply Chains Solutions, LLC 2026-01540328	Motion to Compel Arbitration Defendant Armstrong Transportation Management, LLC’s petition to compel arbitration is GRANTED as follows. There is no opposition to the motion. Plaintiff Connectcomp, Inc. (plaintiff) is ORDERED to arbitrate its claims against Armstrong Transportation Management, LLC (ATM) pursuant to arbitration provision in ATM’s “Terms and Conditions.” (See Bagdanovic Decl. at Ex. C, p. 6 [“For all matters aside from equitable and extraordinary relief, Customer and Company agree to binding arbitration before a single arbitrator pursuant to the rules of the American Arbitration Association.”].) This petition is based on plaintiff’s signed and completed credit application with ATM, which provides that “[a]ll services rendered are subject to [ATM’s] Terms and Conditions of Service” (Terms and Conditions) and provides a conspicuous hyperlink to the same, and which Terms and Conditions in turn set forth the subject arbitration agreement. (See Bagdanovic Decl. ¶¶ 7-15, Exs. A-C.) The arbitration agreement is governed by the substantive provisions of the Federal Arbitration Act (FAA) because the subject contract involves interstate commerce. (9 U.S.C. § 1; Bagdanovic Decl. ¶¶ 1, 4-15, Exs. B-C.) The court finds that Tennessee law governs all other issues pursuant to the choice of law provision in the subject contract, including the procedural rules applicable to this motion and any contract formation/validity issues. (See 9 U.S.C. § 2; <i>Arthur Andersen LLP v. Carlisle</i> (2009) 129 S.Ct. 1896, 1902-1903 [pursuant to § 2 of FAA, state contract law governs the validity, revocability, and enforceability of an arbitration agreement]; <i>Pitzer College v. Indian Harbor Ins. Co.</i> (2019) 8 Cal.5th 93, 100-101 [choice of law analysis]; <i>Nedlloyd Lines B.V. v. Superior Court</i> (1992) 3 Cal.4th 459, 467 [that one of the parties resides in a foreign state gives the parties a reasonable ground for choosing that state’s law]; <i>Morgan Keegan & Co., Inc. v. Smythe</i> (Tenn. 2013) 401 S.W.3d 595, 603 [“arbitration agreements ... are now favored in Tennessee both by statute and existing caselaw”]; <i>Mastick v. TD Ameritrade, Inc.</i> (2012) 209 Cal.App.4th 1258,

		1267; see also Bogdanovic Decl. ¶ 1 & Ex. C [“These Terms and Conditions of Service and the relationship of the parties shall be construed according to the laws of the State of Tennessee, without giving consideration to principles of conflict of laws.”].) ATM has demonstrated the existence of an agreement to arbitrate the controversy between ATM and plaintiff. (See <i>T.R. Mills Contractors, Inc. v. WRH Enterprises, LLC</i> (Tenn. Ct. App. 2002) 93 S.W.3d 861, 870; see also Bagdanovic Decl. ¶¶ 7-15, Exs. A-C.) Plaintiff has declined to agree to arbitrate. (See, e.g., ROA Nos. 49 [Pl. CMC Stmt. ¶ 10c(5), failing to indicate it is willing to submit to binding private arbitration], 51 [notice of non-opposition, electing not to oppose the motion but expressly disclaiming the admission of any allegations/contentions in the moving papers].) Plaintiff has also expressly “elect[ed] not to file [an] opposition.” (ROA No. 51 [notice of non-opposition, p. 2].) Under the procedural rules of the Tennessee Uniform Arbitration Act, where, as here, the “motion ... show[s] an agreement to arbitrate” and the other party “does not oppose the motion, then the court must order the parties to arbitrate” and stay the action as to any claims subject to the arbitration. (Tenn. Code Ann. § 29-5-308(a), (g).) This action is STAYED <u>as to ATM only</u> pending completion of arbitration or until further order of the court. The court schedules an Alternative Dispute Resolution (ADR) Review Hearing as to Plaintiff and ATM only on April 16, 2027 at 8:30 a.m. in Department C44. Case Management Conference continued to February 19, 2027 at 8:30 a.m. in Department C44. The parties are ordered to meet and confer 30 days before the CMC per CRC, Rule 3.724, and file Case Management Statements 15 days prior to the CMC per CRC, Rule 3.725. ATM shall give notice.
207	Gutierrez vs. Rivian Automotive, Inc. 2025-01533837	Motion to Compel Arbitration Defendant Rivian Automotive, Inc.’s motion to compel arbitration is DENIED.